

THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY
MUMBAI.

COMPLAINT NO: CC006000000110798

Ashesh Garg and Manu Garg ... Complainants.

COMPLAINT NO: CC006000000141028

Praveenkumar Garg ... Complainant.

COMPLAINT NO: CC006000000141134

Mr Sharad vasudev Koli and ... Complainants.
Mrs Priyanka Sharad Koli

COMPLAINT NO: CC006000000192243

Ms. M. V. Geetha
Mr. G. Venkata Krishanan ... Complainants.

COMPLAINT NO: CC006000000192328

Indu Sharma ... Complainant.

COMPLAINT NO: CC006000000192389

Renu H Dubey ... Complainant.

COMPLAINT NO: CC006000000192391

Shashi H Dubey and Harish D Dubey ... Complainants.

COMPLAINT NO: CC006000000192395

Shweta Nayak ... Complainant.



COMPLAINT NO: CC006000000192412

Sudhir Kumar Singh and Meenakshi Singh ... Complainants.

COMPLAINT NO: CC006000000192432

Alphonso Paul ... Complainant.

COMPLAINT NO: CC006000000192435

Selvin Correia and Pinky Correia ... Complainants.

COMPLAINT NO: CC006000000192439

Smitha Anand Maroli and Suresh Anand Maroli ... Complainants.

COMPLAINT NO: CC006000000192473

Jatinder Pal Singh Dhanjal and ... Complainants.
Kuldeep Singh

COMPLAINT NO: CC006000000192475

Ajay Narayan Solanki ... Complainants.
Varsha Ajay Solanki

Versus

JVPD Properties Pvt. Ltd. ... Respondents.
(Serenity- Bldg 1)

MahaRERA Regn P51800011181

Coram: Shri B.D. Kapadnis,
Hon'ble Member II.

Appearance:

Complainants: Adv. Mr. Godfrey W. Pimenta.
Respondents: Adv. Mr. Alok Singh.



Final Order

18th February 2020.

The complainants have filed the complaints under Section 18 of RERA for getting refund of their amount paid to the respondents in respect of booking of their flats in respondents' registered project Bhagtani Serenity situated at Village Tirandaz, Taluka Kurla. The necessary information furnished by the complainants is as under-

Complainant/s	Flat No.	Amount Paid (Rs)
Ashesh Garg and Manu Garg	A - 1001	40,70,466/-
Praveenkumar Garg	A-2202	21,80,353/-
Mr Sharad vasudev Koli and Mrs Priyanka Sharad Koli	B-603	43,64,479/-
Ms. M. V. Geetha Mr. G. Venkata Krishanan	D-1701	50,66,100/- (Payment of Rs.4,00,750/- in cash is not proved)
Indu Sharma	A2-2101	28,66,266/-
Renu H Dubey	C-1201 & 1202	41,42,672/-
Shashi H Dubey and Harish D Dubey	C-1102	58,14,008/-
Shweta Nayak	C-2202	35,80,586/-
Sudhir Kumar Singh and Meenakshi Singh	A-704	20,71,336/-
Alphonso Paul	D-2101	33,84,252/-
Selvin Correia and Pinky Correia	E-1504	19,15,540/-

Smitha Anand Maroli and Suresh Anand Maroli	D-601 2402 corrected 39 4/12/2016	53,01,818/-
Jatinder Pal Singh Dhanjal and Kuldeep Singh	D-1901	46,39,050/-
Ajay Narayan Solanki Varsha Ajay Solanki	E-2601	54,16,950/-

Complainants contend that respondents issued the allotment letters contending therein that respondents shall complete the construction within the period of 42 months from the receipt of final commencement certificate from plinth level if the clearances are not obtained within the period of 9 months with the grace period of next 3 months, the allottees shall be entitled to terminate the allotment letters and claim refund. Respondents by their letter dated 24th July 2017 showed their inability to complete the construction and give possession as agreed. Respondents, made themselves liable to refund all the amount paid by the complainants with interest under Section 18 of Real Estate (Regulation and Development) Act, 2016 (RERA).

2. The respondents have filed the reply in some complaints and their learned Advocate submits to treat them as a common reply in all the complaints. Respondents contend that the complainants are the investors and they are not allottees because in Para 11 & 18 of the provisional allotment letters they have admitted that they are investors. The provisional letters for booking are subject to approvals and permissions to be granted by various authorities for construction. It is a contingent contract and therefore it cannot be enforced as the approvals and



permissions required for construction have not been granted. Section 18 of RERA is not retrospective. Hence they request to dismiss the complaint.

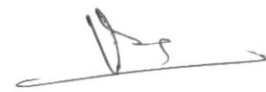
3. Following points arise for my determination and findings thereof are as under:

Points.	Findings.
1. Whether the respondents failed to complete the project as agreed?	Affirmative.
2. Whether the complainants are entitled to get back their amount with interest?	Affirmative.

Reasons.

4. In Neelkamal Realtors Suburban Pvt. Ltd. - v/s- Union of India (W.P.No. 2737 of 2017) Their Lordships of Bombay High court have held that sections 12 and 18 of RERA are retroactive. Allotment letters disclose the fact that the complainants agreed to purchase and respondents agreed to sell flats and therefore I do not find that complainants are investors. I find that they are allottees as defined by section 2(d) of RERA, hence this Authority has jurisdiction to entertain these complaints

5. Complainants have relied upon the allotment letters issued by the respondents. On their perusal it becomes clear that the respondents made false statement/representation that the project is viable and it would be completed. Complainants have received the said letter dated 24-07-2017 disclosing the fact that for various reasons mentioned in the said letter, it is not possible for them to proceed ahead with the project and complete it. Hence, the complainants have proved that the respondents have failed to construct and complete the project as agreed. Respondents have failed to complete the project due to its abandonment. Hon'ble High Court has also referred to such situation where the promoters can claim frustration when they are unable to complete the project for no fault of their own, in the case of Neelkamal Realtors Suburban Pvt. Ltd. - v/s- Union of India (W.P.No.



2737 of 2017). In para 259 of the judgment, Their Lordships have mentioned that even in such a situation promoter will have to return the allottees' amount with interest. Hence the complainants are entitled for refund of their amount.

Entitlement of the complainants:

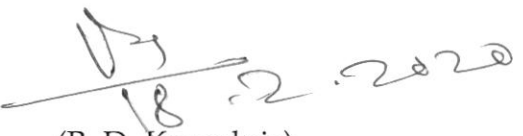
6. I have held that the complainants are entitled to get back their amount. They are entitled to get refund of those amount with the interest at prescribed rate from the date of payment till their refund. The prescribed rate of interest is 2% above the SBI's highest MCLR which is currently 8.25%. No separate compensation is pressed. The complainants are also entitled to get Rs. 10,000/- towards the cost of their complaints. Hence, the following order.

ORDER

- a) The respondents shall refund the complainants the amount paid by them mentioned in the table with simple interest at the rate of 10.25% per annum from the date/s of their payment till they are refunded.
- b) The respondents shall pay complainants Rs. 10,000/- towards the cost of their complaint.
- c) The charge of aforesaid amount shall be on the respondents' property under project bearing C.T.S. No. 63A/5 and 64D "S" ward of village Tirandaz, Taluka Kurla, Mumbai, till the complainants' claims are satisfied.

Mumbai.

Date: 18.02.2020.


(B. D. Kapadnis)
Member II,
MahaRERA, Mumbai.

**THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY
MUMBAI.**

COMPLAINT NO: CC006000000192467.

Mr. Rajendra Nikam ... Complainant.

COMPLAINT NO: CC006000000192472.

Mrs. Puja Dattaprasad Sadwelkar and Dattaprasad Sadwelkar
... Complainants.

COMPLAINT NO: CC006000000192473.

Mr. Jatinder Pal Singh Dhanjal and Kuldeep Singh ... Complainants.

COMPLAINT NO: CC006000000192474.

Mr. Pankaj Arora and Vishal Arora ... Complainants.

COMPLAINT NO: CC006000000192475.

Mr. Ajay Narayan Solanki and Varsha Ajay Solanki ... Complainants.

COMPLAINT NO: CC006000000192479.

Ms. Kinnari Gupta and Rakhi Gupta ... Complainants.

COMPLAINT NO: CC006000000192480.

Mr. Amit Khandelwal and Mamta Khandelwal ... Complainants.

COMPLAINT NO: CC006000000192481.

Ms. Nimu J Mehta and Manish Mehta ... Complainants.

COMPLAINT NO: CC006000000192482.

Ms. Alpa Jay Shah ... Complainants.

COMPLAINT NO: CC006000000192546.

Mrs Vaibhavi Mhatre Marwah and Mr Nitin H Marwah
... Complainants.

Versus

M/s. JVPD Properties Pvt Ltd

... Respondents.

MahaRERA Regn: P51800011181.



Coram: Shri B.D. Kapadnis,
Member-II.

Appearance:

Complainant: Adv. Mr. Godfrey Pimenta.

Respondents: Adv. Mr. Alok Kumar Singh.

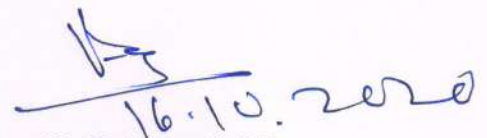
ORDER ON THE RECOVERY APPLICATION

16th October, 2020

The complainants have filed applications reporting non-compliance of final order dated 18th February 2020. The respondents appear through Adv. Mr. Alok Singh to contend that the Economic Offence Wing of Mumbai is investigating the matter based upon the report filed against the respondents and their bank account has been freeze by the police. Therefore, the respondents are not able to comply with the order, unless and until the Hon'ble Bombay High Court de-freezes their account by passing an order to that effect in suit no. (L) 570 of 2018.

2. The reason assigned by the respondents does not appeal to me because the respondents had an opportunity to satisfy the claims of the complainants even before freezing their account. They have also other sources which they do not want to tap for compliance. Hence issue recovery warrant under section 40(1) of the RERA.

Date: 16.10.2020.


(B. D. Kapadnis)
Member-II,
MahaRERA, Mumbai.